Section 6. **Severability**. If any section, subsection, sentence, clause, phrase, or word of this Charter amendment, or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of the Charter amendment. The qualified voters of the City and County of San Francisco hereby declare that they would have voted in favor of this Charter amendment, and each and every section, subsection, sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portion of this Charter amendment or application thereof would be subsequently declared invalid or unconstitutional.

Section 7. Liberal Construction

This measure shall be liberally construed and applied in order to fully promote its underlying purposes.

Proposition G

BE IT ORDAINED by the People of the City and County of San Francisco as follows:

SECTION 1. Title.

This measure shall be known and may be cited as **"The Great Highway for Everyone Act, Restoring Balanced Access to Parks and Safer Transit."**

SECTION 2. Findings.

(a) In April 2020, acting in response to the COVID-19 pandemic, the City temporarily closed the Upper Great Highway between Lincoln Way and Sloat Boulevard ("Upper Great Highway") to private vehicle traffic to provide temporary open space for recreation during shelter-in-place orders. As pandemic restrictions eased and San Francisco residents resumed in-person work, school, and other activities in 2021, the City recognized that a balance was necessary between recreational and transportation uses of the Upper Great Highway.

(b) In August 2021, the City modified the closure to establish a compromise: the Upper Great Highway would be closed to private vehicles only from Friday at noon through Monday at 6:00 a.m., and on holidays, allowing the roadway to serve as a recreational space on weekends when demand for such use is highest, while remaining available for vehicle traffic on weekdays when working families, commuters, and others rely on it to reach employment, schools, medical facilities, and other destinations.

(c) In 2022, the Board of Supervisors adopted Ordinance No. 258-22, which extended this weekend and holiday closure arrangement on a pilot basis through December 31, 2025. This pilot program demonstrated that the compromise worked: weekend recreational use of the Upper Great Highway flourished, with approximately 10,000 visits per weekend, while weekday vehicle access served approximately 14,000 to 20,000 vehicles per day, providing a vital north-south route along San Francisco's western neighborhoods.

(d) In 2024, despite the success of this compromise arrangement and without adequate community engagement with District 4 residents most directly affected by the closure, Supervisor Joel Engardio sponsored Proposition K, a ballot measure that would permanently close the Upper Great Highway to private vehicles seven days per week. Proposition K was placed on the citywide ballot on the final day permitted by law for such placement.

(e) San Francisco voters citywide narrowly approved Proposition K in November 2024. However, voters in Supervisorial District 4—the district that includes the Upper Great Highway and the residential neighborhoods most directly impacted by its closure—rejected Proposition K by a decisive margin, with approximately 64% voting against the permanent closure.

(f) Following the passage of Proposition K, residents of District 4 organized a recall campaign against Supervisor Engardio, citing his failure to adequately consult with constituents before sponsoring the permanent closure measure. On May 29, 2025, the Department of Elections certified that the recall petition contained 10,523 valid signatures, exceeding the 9,911 signatures required to qualify the recall for the ballot. In the September 16, 2025 special recall election, District 4 voters removed Supervisor Engardio from office by an overwhelming 62.72%, demonstrating the depth of concern about the permanent closure of the Upper Great Highway.

(g) Since the implementation of Proposition K's permanent closure, the elimination of weekday vehicle access to the Upper Great Highway has resulted in the diversion of thousands of vehicles daily onto residential streets in surrounding neighborhoods, including streets in the Outer Sunset and Outer Richmond districts. Neighbors, parents, and working people who previously used the Upper Great Highway for weekday travel now must drive through residential neighborhoods or through Golden Gate Park on Crossover Drive and other park roads, increasing traffic congestion, noise, and safety concerns on streets where children play and families live.

(h) The permanent closure has also eliminated a critical coastal evacuation route that could be essential in the event of an earthquake, wildfire, or other emergency requiring rapid evacuation of San Francisco's western neighborhoods. Emergency response times for police, fire, and medical services to areas west of the Upper Great Highway have been negatively impacted by the need to use alternate routes that are more congested and circuitous.

(i) The City must maintain the Upper Great Highway roadway surface regardless of whether it is open to private vehicles, because emergency vehicles, public transit, Recreation and Park Department vehicles, and other authorized vehicles require access to the corridor. Given this maintenance requirement, the roadway surface remains suitable for dual use: recreational use on weekends and holidays when families and visitors can most readily enjoy coastal access, and vehicle traffic on weekdays when transportation needs are greatest and recreational demand is lower.

(j) Proposition K did not provide funding for the conversion of the Upper Great Highway into a formal park with amenities such as seating, landscaping, or facilities. The closure has resulted in an underutilized paved roadway on weekdays, when recreational use is minimal, while simultaneously forcing weekday vehicle traffic onto less suitable routes through residential neighborhoods and Golden Gate Park.

(k) The voters now seek to restore the balanced approach that was working effectively before Proposition K: preserving the weekend and holiday closure that allows San Franciscans to enjoy the Upper Great Highway as a coastal recreational promenade when demand for such use is highest, while reopening the roadway to vehicle traffic on weekdays when working families need access to employment, schools, and services, and when the diversion of traffic onto residential streets and through Golden Gate Park creates the greatest burden on surrounding neighborhoods.

(l) This measure represents a fair and sensible compromise that serves the needs of all San Franciscans: it maintains the

recreational benefits that thousands of weekend visitors enjoy, while restoring essential weekday transportation access for working families and reducing the traffic impacts on residential neighborhoods. By providing clarity and finality on this issue, this measure will allow San Francisco to move forward with a stable, long-term arrangement that balances recreation and transportation needs on the Upper Great Highway.

(m) The voters recognize that implementation of this measure may require approvals under the California Coastal Act of 1976 {Public Resources Code Sections 30000-30900), which governs land use in California's coastal zone. The voters direct the City to seek all necessary permits and approvals expeditiously, and affirm that the weekend and holiday recreational use preserved by this measure is consistent with the Coastal Act's mandate to maximize public access and recreational opportunities in the coastal zone.

SECTION 3. The Great Highway for Everyone Act, Restoring Balanced Access to Parks and Safer Transit.

Article 6 of the Park Code is hereby amended by revising Section 6.13 to read as follows:

(a) **Findings and Purpose.** In 2022, following the temporary closure of the Great Highway between Lincoln Way and Sloat Boulevard (hereafter, the "Upper Great Highway") due to the COVID-19 pandemic, the Board of Supervisors, on recommendation of the Recreation and Park Commission and San Francisco Municipal Transportation Agency ("SFMTA") Board of Directors, found that it would be appropriate to restrict private vehicles from the four-lane limited-access Upper Great Highway during specified times, due to the need to ensure the safety and protection of persons using those streets for recreational purposes, and because such restrictions would leave sufficient roadway capacity in the surrounding area for vehicular, pedestrian, and bicycle traffic during the periods of restriction.

In 2024. the voters adopted Proposition K, which imposed restrictions on private vehicles on the Upper Great Highway at all times. However, the permanent. full-time closure mandated by Proposition K has resulted in significant impacts on surrounding residential neighborhoods, as neighbors, parents, and working people who require vehicle access for employment, school, medical appointments, and other essential trips now must use residential streets in the Outer Sunset and Outer Richmond districts, or drive through Golden Gate Park, rather than using the Upper Great Highway. The permanent closure has also eliminated a coastal evacuation route that may be needed in the event of earthquake, wildfire, or other emergency.

The People of the City and County of San Francisco hereby find that a balanced approach better serves the public interest: restricting private vehicles from the Upper Great Highway on weekends and holidays, when recreational demand is highest and approximately 10,000 visitors per weekend enjoy the coastal promenade, while permitting vehicle traffic on weekdays, when transportation needs are greatest, recreational use is minimal, and the diversion of traffic onto residential streets and through Golden Gate Park creates unacceptable burdens on surrounding neighborhoods.

The People further find that the Upper Great Highway roadway must be maintained for use by emergency vehicles, public transit, and other authorized vehicles regardless of whether it is open to private vehicles, and that this dual-use approach—recreational use on weekends and holidays, vehicle access on weekdays—represents an efficient use of public infrastructure that serves the diverse needs of San Francisco residents.

Consistent with the foregoing, the People hereby find that it is appropriate to restrict private vehicles from the Upper Great Highway during weekends and holidays only, as set forth herein, thereby preserving valued recreational access while restoring essential weekday transportation capacity. These restrictions will continue to leave sufficient roadway capacity in the surrounding area for vehicular, pedestrian. and bicycle traffic during the periods when the Upper Great Highway is closed to private vehicles, while reducing the burden on residential streets and Golden Gate Park during weekdays. ~~In 2022, following the temporary closure of the Great Highway between Lincoln Way and Sloat Boulevard (hereafter, the "Upper Great Highway") due to the COVID 19 pandemic, and on recommendation of the Recreation and Park Commission and San Francisco Municipal Transportation Agency ("SFMTA") Board of Directors, the Board of Supervisors found that it would be appropriate to restrict private vehicles from the four-lane limited-access Upper Great Highway at certain times, due to the need to ensure the safety and protection of persons who are to use those streets, and because the restrictions would leave a sufficient portion of the streets in the surrounding area for other public uses including vehicular, pedestrian, and bicycle traffic.~~

~~Consistent with the foregoing, the People of the City and County of San Francisco hereby affirm and readopt these findings that the Upper Great Highway is not needed for vehicular traffic, and further find that, for the same reasons, it would be appropriate to restrict private vehicles from the four-lane limited-access Upper Great Highway at all times, as described herein. The additional restrictions would still leave a sufficient portion of the streets in the surrounding area for other public uses including vehicular, pedestrian, and bicycle traffic.~~

(b) **Restrictions on Private Vehicles.** The Recreation and Park Department shall restrict private vehicles from the Upper Great Highway from Friday at 6:00 p.m. until Monday at 4:00 a.m., and on City, State, or federal holidays, as set forth herein.

(c) **Public Notice.** The Recreation and Park Department shall include on its website a map depicting the street segments subject to the street closures and traffic restrictions authorized in subsection (b), and such other information as it may deem appropriate to assist the public; and shall provide advance notice of any changes to these street closures or traffic restrictions to residents and owners of property abutting those streets.

(d) **Exempt Motor Vehicles.** The following motor vehicles are exempt from the restrictions in subsection (b):

(1) Emergency vehicles, including but not limited to police and fire vehicles.

(2) Official City, State, or federal vehicles, or any other authorized vehicle, being used to perform official City, State, or federal business pertaining to the Upper Great Highway or any property or facility therein, including but not limited to public transit vehicles, vehicles of the Recreation and Park Department, and construction vehicles authorized by the Recreation and Park Department.

(3) Authorized intra-park transit shuttle buses, paratransit vans, or similar authorized vehicles used to transport persons along the Upper Great Highway.

(4) Vehicles authorized by the Recreation and Park Department in connection with permitted events and activities.

(e) **Emergency Authority.** The General Manager of the Recreation and Park Department shall have the authority to allow vehicular traffic on segments of the Upper Great Highway that would otherwise be closed to vehicles in accordance with this Section 6.13 in circumstances which in the General Manager's judgment constitute an emergency such that the benefit to the

public from the vehicular street closure is outweighed by the traffic burden or public safety hazard created by the emergency circumstances.

(f) **Promotion of the General Welfare.** In enacting and implementing this Section 6.13, the City is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.

(g) **Severability.** If any subsection, sentence, clause, phrase, or word of this Section 6.13 or any application thereof to any person or circumstance, is held to be invalid or unconstitutional by a decision of a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or applications of Section 6.13 . The People of San Francisco hereby declare that this measure, and each portion and part. would have been adopted irrespective of whether any one or more provisions or parts are found to be invalid or unconstitutional. The People of San Francisco further declare their desire that this measure provide for the closure of the Great Highway only during weekends and holidays, provide adequate notice of closures. and exempt certain motor vehicles, are independently important of one another. ~~The Board of Supervisors hereby declares it would have passed this Section and each and every subsection. sentence, clause, phrase, and word not declared invalid or unconstitutional without regard to whether any other portions of Section 6.13 or application thereof would be subsequently declared invalid or unconstitutional.~~

(h) **Amendment.** The Board of Supervisors may amend, by a supermajority of at least eight votes, technical. procedural and administrative provisions of the Ordinance. Amendments to the days and time during which motor vehicles are used on the Great Highway, or other fundamental purposes, shall require approval by a majority of voters.

SECTION 4. Effective Date and Operative Date.

This measure shall be effective and operative upon its approval by a simple majority of electors voting on the measure.

SECTION 5. Severability.

If any provision of this measure, or part thereof, or the applicability of any provision or part to any person or circumstances, is for any reason held to be invalid or unconstitutional, the remaining provisions and parts shall not be affected, but shall remain in full force and effect, and to this end the provisions and parts of this measure are severable. The People of San Francisco hereby declare that this measure, and each portion and part, would have been adopted irrespective of whether any one or more provisions or parts are found to be invalid or unconstitutional. The People of San Francisco further declare their desire that this measure provide for the closure of the Great Highway only during weekends and holidays, provide adequate notice of closures, and exempt certain motor vehicles, are independently important of one another.

SECTION 6. Conflicting Measures.

This measure is intended to be comprehensive. It is the intent of the People of San Francisco that, in the event this measure appears on the same ballot as one or more measures relating to the use of motor vehicles on the Great Highway, the provisions of the other measure or measures shall be deemed in conflict with this measure. In the event that this measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and the provisions of the other measure or measures may be implemented only to the extent that those provisions are not in conflict with each provisions this measure. The provisions of a conflicting measure or measures shall be deemed in conflict with this measure if such conflicting measure or measures would permit the Great Highway to be closed in excess of the closures contemplated by this measure. If this measure is approved by a majority of the voters, but does not receive a greater number of affirmative votes than any other measure or measures appearing on the same ballot regarding the use of motor vehicles on the Great Highway, then this measure shall take effect to the extent not in conflict with said other measure or measures.

SECTION 7. Amendment.

The Board of Supervisors may amend, by a supermajority of at least eight votes, technical, procedural and administrative provisions of the Ordinance. Amendments to the days and time during which motor vehicles are used on the Great Highway, or other fundamental purposes, shall require approval by a majority of voters.

SECTION 8. Liberal Construction.

This measure is an exercise of the initiative power reserved to the People of San Francisco to permit motor vehicle access to the Great Highway from TIME to TIME; and shall be liberally construed to effectuate that purpose.

SECTION 9. Municipal Affair.

The People of San Francisco hereby declare that, separately and together, the use of motor vehicles on the Great Highway constitutes a municipal affair. The People of San Francisco hereby further declare their desire for this measure to coexist with any similar measures adopted at the city, county or state levels.

SECTION 10. Legal Defense.

The People of the San Francisco desire that this measure, if approved by a simple majority of voters, and thereafter challenged in court, be defended by the City and County of San Francisco. The People of San Francisco, by approving this measure, hereby declare that the proponent(s) of this Act have a direct and personal stake in defending this measure from constitutional or statutory challenges to the measure's validity or implementation. In the event that the City and County of San Francisco fails to defend this measure, or that the City and County of San Francisco fails to appeal an adverse judgment against the constitutionality, statutory permissibility or implementation of this measure, in whole or in part, in any court of law, the measure's proponent(s) shall be entitled to assert his, her or their direct personal stake by defending the measure's validity and implementation in any court of law and shall be empowered by the People of San Francisco through this measure to act as agents of the People of San Francisco, and the City and County shall indemnify the proponent(s) for reasonable fees, expenses and other losses incurred by the proponent(s), as agent(s) of the City and County of San Francisco, in defending the validity and/or implementation of the measure. The rate of indemnification shall be no more than the amount it would cost San Francisco to perform the defense itself.

Proposition H

Be it ordained by the People of the City and County of San Francisco:

STRONGER MUNI FOR ALL ORDINANCE

NOTE: Unchanged Code text and uncodified text are in plain font.

Additions to Codes are in *single-underline italics Times New*